

An Act

ENROLLED HOUSE
BILL NO. 4075

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

An Act relating to Oklahoma Water Resources Board; making appropriations; identifying source; establishing amounts; providing purposes; identifying funds appropriated to the Oklahoma Water Resources Board; authorizing the Oklahoma Water Resources Board to transfer and allocate between projects as needed for certain purposes; requiring and limiting the utilization of funds; creating certain special accounts; limiting duration of accounts; requiring certain determination; providing and limiting the nature of the accounts and the funds within the accounts; authorizing agency to submit request for certain deposits or transfers; requiring certain compliance and verifications; authorizing certain memorandums of understanding; limiting scope; prohibiting certain memoranda terms; authorizing and limiting the promulgation of rules and utilization of procedures; requiring certain reports and submissions to certain entities; requiring appearance before certain joint committee; limiting duration of certain requirements; providing for noncodification; and declaring an emergency.

SUBJECT: Oklahoma Water Resources Board

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Oklahoma Water Resources Board from any monies not otherwise appropriated from the Statewide

Recovery Fund established in Section 255 of Title 62 of the Oklahoma Statutes, the sum of Twenty-five Million Nine Hundred Ninety-eight Thousand Seven Hundred Ninety-eight Dollars (\$25,998,798.00) or so much thereof as may be necessary to complete ongoing projects that have received prior appropriations from the Statewide Recovery Fund or to target statewide strategic water infrastructure projects. Such funds shall be utilized in a manner consistent with the recommendations adopted by the Joint Committee on Pandemic Relief Funding on April 15, 2026.

SECTION 2. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

Of the funds appropriated to the Oklahoma Water Resources Board pursuant to:

1. Enrolled Senate Bill No. 429 of the 2nd Regular Session of the 58th Oklahoma Legislature;
2. Enrolled Senate Bill No. 42 of the 2nd Regular Session of the 58th Oklahoma Legislature;
3. Enrolled Senate Bill No. 4 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;
4. Enrolled Senate Bill No. 13 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;
5. Enrolled House Bill No. 2942 of the 1st Regular Session of the 59th Oklahoma Legislature;
6. Enrolled House Bill No. 2937 of the 2nd Regular Session of the 59th Oklahoma Legislature; and
7. Enrolled House Bill No. 2789 of the 1st Regular Session of the 60th Oklahoma Legislature,

the Oklahoma Water Resources Board is hereby authorized to transfer and allocate amounts between such projects as needed in order to complete any such project and purpose listed in measures described in paragraphs 1, 2, 3, 4, 5, 6, and 7 of this section.

SECTION 3. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

A. There is hereby created in the State Treasury a Statewide Recovery Special Account for the Oklahoma Water Resources Board for each appropriation section of this act. The duration of such accounts shall continue for the period of time that monies related to the American Rescue Plan Act of 2021 are being budgeted, expended, or managed in the state. The ending of such period shall be determined by the State Treasurer, and shall result in the closing of such accounts as a matter of law. Such accounts shall be continuing accounts as otherwise provided in this section, not subject to fiscal year limitations, and shall exclusively consist of monies related to the relevant appropriations made in this act and as otherwise directed by law. All monies deposited to the credit of such accounts are hereby appropriated and may be budgeted and expended by the Oklahoma Water Resources Board in accordance with the provisions of this act. Expenditures from such accounts shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. The Oklahoma Water Resources Board is authorized to request in writing that the monies appropriated by the provisions of this act be deposited or transferred to the accounts created pursuant to subsection A of this section. No later than seven (7) calendar days from the date of such request, the Director of the Office of Management and Enterprise Services shall comply with such request and verify to the requesting agency that such deposit or transfer has been completed.

SECTION 4. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Oklahoma Water Resources Board may enter into memorandums of understanding with other agencies of the State of Oklahoma for the auditing, documentation, evaluation, implementation, oversight, reporting, and management of funds and associated efforts related to the appropriations made in this act; provided, that no such memorandum of understanding shall require or include, as an option or condition, the direct or practical transfer or relinquishment of control by the agency appropriated such funds to budget, expend, allocate, and request the distribution of the funds appropriated by this act.

SECTION 5. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Oklahoma Water Resources Board may promulgate rules, utilize existing rules, establish procedures, and utilize existing procedures to implement the provisions of this act; provided, such rules and procedures do not conflict with or impede the provisions of this act.

SECTION 6. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Oklahoma Water Resources Board is authorized to enter into contracts with financial institutions and execute such instruments as may be necessary and convenient to hold and disseminate grant funds in accordance with applicable federal and state regulations and Board policies.

SECTION 7. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

A. The Oklahoma Water Resources Board shall:

1. Submit to the Chairs of the Joint Committee on Pandemic Relief Funding, or any successor Senate legislative or House of Representatives legislative committee or joint committee, as designated by the President Pro Tempore of the Senate and the Speaker of the House of Representatives:

- a. a written or electronic quarterly report detailing the budgeting, expenditure, and management of all monies appropriated in this act, and
- b. a copy of all memorandums of understanding and contracts with third parties entered into by the Oklahoma Water Resources Board to facilitate, assist, or administer powers and duties provided to the Oklahoma Water Resources Board under the provisions of this act; and

2. At the Joint Committee on Pandemic Relief Funding's request, appear before the Joint Committee no later than six (6) months after the effective date of this act, and as otherwise requested by the Joint Committee to provide a status update regarding the implementation of the provisions of this act.

B. The provisions of subsection A of this section shall remain applicable for the period of time that monies appropriated under

this act are being budgeted, expended, or managed in the state. The ending of such period shall be determined by the State Treasurer, and shall be reported to the Governor, President Pro Tempore of the Senate and the Speaker of the House of Representatives.

SECTION 8. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 21st day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____